Katrina's Mystic Visitors Guide — Counsel Packet

Tier 1 — Pre-NDA Disclosure Set

Prepared for: The 2026-04-20 counsel engagement meeting **Prepared by:** Dean Maurice Ellis, founder / sole proprietor (pending C-corp formation at this meeting) **Date:** April 2026 **App name (working title):** *Katrina's Mystic Visitors Guide* **Product:** Paid ($19.99) offline GPS walking-tour Android application for Salem, Massachusetts **Ship target:** Google Play Store before **2026-09-01** (Salem 400+ quadricentennial window)

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1. Purpose of this packet

This packet is assembled so that you — as prospective counsel — have, on paper, the legal and compliance work already done by the operator, and a clear set of open decisions for you to drive.

The goal of the 2026-04-20 meeting is twofold:

1. **Formally engage counsel** to represent the to-be-formed C-corp through the pre-launch and Play Store submission phases.
2. **Drive the twelve open decisions** enumerated in this packet so the operator can execute on the Play Store submission timeline.

This is **Tier 1** of a two-tier disclosure package. Tier 1 is the public-facing, non-IP-sensitive material. Tier 2 — which contains the operator's intellectual-property register, architecture, and full commercial strategy — is **held back until a mutual non-disclosure agreement or an engagement letter with explicit confidentiality provisions is in place**. See §3 below.

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2. What's in this packet

§	Document	Purpose
A1	Legal Walkthrough (redacted)	The twelve open decisions, with recommendations
A2	Pricing + Age-Gate Posture	$19.99 flat paid, IARC Teen, no dev-side age gate
A3	V1 Privacy Policy Draft (Posture A)	Public-URL Privacy Policy — for your review before hosting
A4	V1 Terms of Service Stub	Minimal ToS draft for your review
A5	Google Play Data Safety — Pre-Filled Answers	Every Play Console questionnaire question, pre-answered
A6	Google Play Store Release Checklist	Operator-action checklist by lead-time
A7	Counsel Decision Checklist	Single-page sign-off sheet for Monday
B1	Tier-2 Holdback Manifest	What's in Tier 2 and why it's gated
B2	Mutual NDA Template (Draft)	Optional template if you don't have one ready

3. Non-Disclosure Request — Read First

3.1 What we are protecting

The operator has, over roughly 150 development sessions, produced substantial intellectual-property-sensitive work product in addition to this pre-NDA packet:

- An **intellectual-property register** documenting **14 patentable innovations** across GPS / geospatial algorithms, content pipelines, and narration systems. Each entry carries novelty analysis, claim-angle sketches, and protection-roadmap recommendations.
- A **comprehensive governance and compliance framework** (~1,150 lines of lawyer-ready material).
- A **full commercialization strategy** including tier architecture, market analysis, and financial projections.
- A **technical design-review record** of architectural decisions with algorithm-level specificity.
- A **future-state Privacy Policy** describing functionality not yet shipped in V1, tied to a cross-project radio-observation data architecture that is itself a candidate for IP protection.

Disclosing this material before a confidentiality agreement is in place creates two specific risks:

1. **Patent novelty risk.** Several of the 14 innovations have not yet been filed as provisional patents. Public disclosure, or disclosure to a party not bound by confidentiality, starts the 12-month US bar clock running (35 U.S.C. § 102(b)) and may eliminate foreign-jurisdiction filing rights entirely. The operator is aware of this and is deliberately not disclosing novelty analysis pre-engagement.
2. **Competitive risk.** The Salem tourism market is small, local, and has multiple existing apps. Leak of the tier architecture or the specific feature roadmap would meaningfully advantage a competitor.

3.2 What we are asking

Before the operator discloses Tier 2 material, we ask counsel to either:

- **Option A (preferred):** sign a mutual NDA. A draft mutual-NDA template is included at §B2 for your convenience. You are, of course, welcome to substitute your own.
- **Option B:** execute an engagement letter with explicit confidentiality provisions covering the attorney-client relationship, including confidentiality obligations in respect of technical and business-strategy material shared during the engagement. (We are aware that ABA Model Rule 1.18 extends a confidentiality duty to prospective-client disclosures, but we want the protection to be express and written.)

Upon execution of either, the operator will immediately deliver Tier 2 of this packet (see §B1 for the manifest).

3.3 What's NOT gated by the NDA

Everything in this Tier 1 packet is either already public-facing (pricing, Privacy Policy intended for public URL hosting, Terms of Service intended for public URL hosting, Play Store submission metadata) or is a decision list suitable for an initial counsel consultation. **You can engage with this Tier 1 material without any confidentiality agreement.** It is safe to read, discuss, and annotate.

4. One-page executive summary

What the app is. A paid ($19.99 one-time) offline Android walking-tour app for Salem, Massachusetts. Bundles a map, ~1,830 points of interest, five pre-built walking tours, automatic GPS-triggered narration, and a historical 1692 witch-trials experience. V1 is fully offline — no data leaves the user's phone. Target: the October 2026 Salem 400+ visitor surge.

Who will ship it. A Massachusetts or Delaware C-corp, to be formed at this meeting. Interim fallback: sole-proprietor filing under the operator's personal name, transferred to the C-corp post-formation.

Privacy posture. "Posture A" — the app collects no personal data, transmits nothing off-device, contains no ads or third-party SDKs, and handles payment entirely through Google Play. The Privacy Policy is drafted and ready for your review (§A3).

Pricing + age gate. $19.99 flat paid via Google Play. IARC Teen (13+) content rating. Target audience 13+. Data Safety form answers all "None" (with Location flagged "Accessed but not collected"). In this posture, no developer-side age gate is required — Google Family Link and account age-of-account checks handle the restriction automatically (§A2).

IP actions needed. Held for Tier 2, but at headline level: a US Copyright Office registration ($65) is overdue, a USPTO trademark filing is recommended for the app name (~$300 depending on TEAS path), and a **patent-filing strategy** needs to be discussed post-NDA. Budget estimate for patent provisionals at USPTO micro-entity rate is in the Tier 2 packet.

Third-party content. OpenStreetMap (attribution required in app and store listing), open-source Android libraries (standard license-notices screen), public-domain 1692 primary-source historical records, and locally AI-generated imagery (Stable Diffusion, DreamShaper XL Turbo). AI-image copyright status is legally evolving — counsel input welcome.

Domain. Privacy Policy and support pages to be hosted as subpages of `destructiveaigurus.com` (operator-owned domain). Domain ownership transfer to the C-corp is on the decision list.

Front-of-critical-path item. C-corp formation. Every downstream Play Store operator action — merchant profile, store listing, copyright/trademark assignments, bank account — waits on the incorporation certificate and EIN.

Calendar runway. 4.5 months from today (2026-04-19) to the 2026-09-01 ship target. Comfortable for V1 if no scope creep.

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A1. Legal Walkthrough (Pre-NDA Redacted)

> ***Redaction notice:*** *This is a pre-NDA version. The patent-strategy discussion (originally §9.3 in the operator's working document) has been replaced with a pointer. Specific novelty claims, algorithm names, and claim-angle sketches are held for the Tier 2 packet, deliverable on NDA execution. All other content is unchanged from the original working document.*

Target reading time: 20–30 minutes.

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1. What the app is, in one paragraph

Katrina's Mystic Visitors Guide is a GPS-guided walking-tour application for Salem, Massachusetts, targeting the 1M+ visitor surge for the 2026 Salem 400+ quadricentennial. The app bundles a map of downtown Salem with ~1,830 points of interest, five pre-built walking tours, narration that plays automatically as the user walks past historical sites, and a historical Witch Trials content experience (Oracle-styled 1692 newspapers, portraits of 49 key figures, and cross-linked narratives). V1 is **fully offline** — all content is bundled inside the app at install time, and the app transmits no data during use. Intended ship window: Google Play Store before **2026-09-01** to capture October 2026 visitor traffic.

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2. Open decisions counsel is being asked to drive on Monday

These are the items that require counsel sign-off or operator-with-counsel decision. Each has a full-detail section further down in this document.

#	Decision	Section
2.1	Operating entity — C-corp formation (state, name, registered agent)	§3
2.2	Final app name (*Katrina's Mystic Visitors Guide* is the current working title)	§4
2.3	Domain / hosting URL strategy (DestructiveAIGurus.com subpages for V1)	§5
2.4	Privacy Policy — approve V1-minimal Posture A	§6
2.5	Pricing + age gate — approve $19.99 flat paid, IARC Teen, no dev-side age gate	§7
2.6	Terms of Service stub — does V1 need a ToS at all?	§8
2.7	Copyright filing — US Copyright Office registration ($65, overdue)	§9.1
2.8	Trademark filing — app name + brand	§9.2
2.9	**Patent filing strategy** — NDA-gated; high-level discussion only at Monday meeting	§9.3
2.10	Third-party content licensing — OpenStreetMap attribution, Salem historical corpus provenance, AI-image posture	§9.4
2.11	Play Store operator setup — Google Play Console account under the C-corp	§10
2.12	Insurance and indemnity — does the operating entity need E&O coverage before ship?	§12

3. Operating entity

3.1 The decision

Per operator Session 145 direction: **form a C-corp at the 2026-04-20 counsel meeting; the C-corp is the operating entity for the app.**

3.2 Counsel-level questions

- **State of incorporation.** Delaware is the default for C-corps intending to raise outside capital. Massachusetts (operator's home state) simplifies in-state tax and registered-agent logistics. Counsel should weigh the pros and cons and pick one.
- **Entity name.** Does the C-corp name match the app brand (e.g., *Katrina's Mystic Visitors Guide, Inc.*), or does it use a parent-holding name (e.g., *DestructiveAIGurus, Inc.*) with the app as a product? Parent-holding is common when multiple products will ship under one entity.
- **Registered agent.** Delaware requires an in-state registered agent if out-of-state incorporators form there. Counsel typically provides this as a service or points the operator to a standard provider.
- **Founders and cap table.** Single-founder is the simplest V1 posture. Counsel will likely produce a founder-shares issuance and initial 83(b) election paperwork. If any collaborators or early contributors exist, they need to be declared now.
- **Operating agreement / bylaws.** Counsel-standard for a new C-corp.

3.3 Timing risk

C-corp formation typically takes **1–3 weeks** from filing to receiving the incorporation certificate, and a further 1–2 weeks to open a business bank account and receive an EIN from the IRS. **The V1 Play Store launch target is 2026-09-01 (4.5 months from this document's date)**, so there is comfortable headroom. However, the Google Play Console merchant profile can only be set up once the entity + bank account + EIN exist, so counsel should treat the formation as the front-of-critical-path item.

3.4 Interim posture if formation takes longer than expected

If incorporation slips past July 2026, there are two fallback postures:

1. **Ship as sole proprietor (Dean Maurice Ellis).** V1 can legally ship under a sole-proprietor Google Play Console account, then transfer the listing to the C-corp post-formation. Google allows entity transfers but charges a new $25 registration and may lose review / install continuity.
2. **Delay ship to the next post-Halloween window.** Not recommended — the commercial window is specifically October 2026 Salem 400+ traffic.

Counsel should confirm the C-corp timeline is compatible with the Sept 1 target, and flag early if it is not.

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4. App name — options

4.1 Current working title

Katrina's Mystic Visitors Guide — retitled at operator Session 142 from the earlier internal codename *WickedSalemWitchCityTour*. The brand is centered on the operator's cat (Katrina), who appears as the splash illustration (12 randomized art variants) and the welcome-dialog mascot.

4.2 Naming considerations counsel will raise

- **Trademark search required** before locking the name. The USPTO's TESS database will surface any existing marks that conflict. The working title includes "Katrina" (a personal name) and "Mystic" (a common tourism term) — combinations may or may not be clear.
- **"Salem" in the name?** Several existing apps and trademarks use "Salem" in tourism-related contexts. The current working title avoids "Salem" in the primary name but references the Salem tour heavily in subtitles and store listing copy. Counsel may want to verify that avoiding "Salem" in the trademarked name is sufficient.
- **"Witch" / "Wicked" / "Witch City"** — the prior internal codename used all three. "Witch City" is a widely used Salem tourism tagline but may be a registered regional mark. Worth a TESS check.
- **International considerations.** If the app ships outside the US, cultural appropriateness of "Mystic" and "Witch" in translated markets should be sanity-checked.

4.3 Decision menu for counsel

- [ ] Lock "Katrina's Mystic Visitors Guide" as the app name (after TESS clearance)
- [ ] Pick an alternative name (operator + counsel)
- [ ] Keep the working title for V1 ship and rename in V2 if issues emerge

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5. Domain / URL strategy

5.1 Operator direction

> *"This will be all hosted under DestructiveAIGurus.com — the whole website will need to be redeveloped but everything should be part there as subpages for now."*

5.2 V1 URL requirements (driven by Play Store submission)

- **Privacy Policy** — must be hosted at a public HTTPS URL. Suggested: `destructiveaigurus.com/katrinas-mystic-guide/privacy`.
- **Support contact** — Play Store requires a support email or URL. If a web-form support page is used: `destructiveaigurus.com/katrinas-mystic-guide/support`.
- **Store listing website field (optional but recommended)** — a product landing page: `destructiveaigurus.com/katrinas-mystic-guide/`.

5.3 Counsel-level questions

- **Domain ownership.** DestructiveAIGurus.com is currently registered under the operator's personal name. Post-C-corp formation, should the domain be assigned to the corporation? (Typical yes — corporate-held domains protect the brand.)
- **Hosting and terms of service for the site itself.** The DAG site will have its own separate (brief)

terms covering the website experience — counsel should confirm whether the existing site has one and whether it needs updating to cover the new subpages.

- **Redirects if the app name changes.** If "Katrina's Mystic Visitors Guide" is renamed post-launch, the DAG subpaths must redirect cleanly to preserve SEO and link integrity.
- **Future dedicated domain.** A standalone app domain (e.g., `katrinasmysticguide.com`) would be cleaner commercially but is a post-launch enhancement. Counsel may note this but it is not a V1 blocker.

5.4 Decision menu for counsel

- [ ] Approve DAG-subpages-for-V1 hosting strategy
- [ ] Confirm the DAG domain ownership transfer timing (now, at C-corp funding, or later)
- [ ] Approve the subpage URL pattern (e.g., `/katrinas-mystic-guide/privacy`)

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6. Privacy Policy — Posture A summary

6.1 The decision

Posture A — V1-minimal Privacy Policy. The policy describes only what the shipped V1 app does (GPS on-device, no transmission, no third-party SDKs, no ads, no data collection). Full V1 draft is reproduced at §A3. A longer future-state Privacy Policy — covering functionality not yet shipped in V1 — exists in the operator's repository but is **held for Tier 2** (see §B1).

6.2 What counsel needs to review

- Read §A3 end-to-end (~8 minutes).
- Confirm the four `[TBD]` placeholders (operating entity, contact email, mailing address, jurisdiction) will be filled in before public hosting.
- Approve the plain-English tone, especially the §2.4 user-trust claim *"What we do not collect cannot be lost, leaked, subpoenaed, or sold"*. This is a deliberate framing and is truthful for V1 — but counsel should confirm the framing is acceptable.
- Approve the change-notice mechanism (§2.10 — in-app notice on next launch after material change). This is the hook by which V2 can introduce server-side features without surprise.

6.3 Known pending item

The full future-state Privacy Policy (in Tier 2) is **not** required for V1 and is not needed for the Monday meeting. It is provided in Tier 2 for completeness in case counsel wishes to review the longer-horizon posture.

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7. Pricing and age gate — summary

7.1 The decisions

- **Pricing:** $19.99 flat paid, one-time purchase via Google Play. No subscriptions, no in-app purchases, no ads in V1.
- **Content rating:** IARC Teen (13+). Historical witch-trial content drives this.
- **Age gate:** no developer-side age gate. Google Family Link handles age enforcement automatically under Teen + 13+ target audience + all-None Data Safety.

Full detail reproduced at §A2.

7.2 Corrected mental model

The operator's original hypothesis was *"charge $19.99 and Google handles the age nonsense."* The research-verified reality is *"content rating + target audience + data-safety posture drives the age-enforcement behavior; pricing is incidental."* V1 lands in a clean posture because of the Teen + 13+ + no-data combination, not because of the $19.99 price.

7.3 What counsel needs to confirm

See checklists in §A2 §4. Summary:

- Approve $19.99 flat paid and 15% Google revenue share
- Confirm no state-specific sales-tax or paid-app registration gaps
- Approve IARC Teen + 13+ target audience
- Confirm no developer-side age gate is legally required given the V1 posture

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8. Terms of Service

8.1 Question for counsel — does V1 need a ToS at all?

A traditional mobile-app Terms of Service typically covers: accepting the price, limitation of liability, no-warranty, user-generated-content rules, prohibited uses, license to the app, dispute resolution (arbitration clause, class-action waiver), and termination rights. Google Play provides its own Terms of Sale and distributes the app under Google's developer agreement, which gives the end user some baseline protections the operator does not need to re-specify.

For V1 (paid, fully offline, no user-generated content, no accounts), **the minimum-viable ToS is very short** — essentially:

- This app is licensed, not sold.
- The app is provided "as is" without warranty.
- The operator is not liable for anything the app does or does not do on your device (subject to whatever limitations Google Play's own policies allow).
- Governing law is [state of operating entity].

8.2 Decision menu for counsel

- [ ] No separate ToS for V1 — rely entirely on Google Play's default protections
- [ ] Minimal ToS — draft reproduced at §A4 — hosted at `destructiveaigurus.com/katrinas-mystic-guide/terms`

- [ ] Full ToS (counsel template) — if counsel has a preferred template; adds drafting time but is the most protective

8.3 Recommendation

Minimal ToS hosted on the DAG subpage. It is a low-effort addition that closes a visible gap in the Play Store listing metadata and is slightly more professional than no ToS at all. Counsel likely has a template that fits the V1 scope. The operator's draft at §A4 is a starting point, not a preferred final.

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9. Intellectual Property

9.1 Copyright registration — overdue per operator IP roadmap

The operator's internal IP roadmap tagged a **US Copyright Office registration** for the app source code as a Week-1 item as of early March 2026. **It has not yet been filed.** Cost: $65. Benefit: statutory-damages and attorney-fees eligibility under 17 U.S.C. § 412 if infringement ever occurs.

- [ ] Counsel confirms whether to file now (pre-launch) or at launch
- [ ] Counsel confirms form selection (Form TX — literary work, software source code)
- [ ] Counsel confirms ownership assignment (author = C-corp, once formed)

9.2 Trademark registration

USPTO trademark registration has been on the operator's roadmap as a Month-6 item. With the app rename to *Katrina's Mystic Visitors Guide* at Session 142, the trademark target shifts from the old internal codename to the new brand name.

- [ ] Counsel runs a TESS search on *Katrina's Mystic Visitors Guide* (and variants)
- [ ] Counsel confirms filing basis (IC 009 — mobile application software)
- [ ] Counsel confirms timing (pre-launch is ideal to preserve first-to-use priority, but can be done post-launch without loss)
- [ ] Fee: ~$250–350 depending on TEAS Plus vs TEAS Standard

9.3 Patent strategy — Tier 2 (NDA-gated)

> ***Held for Tier 2.*** *The operator has produced a detailed IP register documenting patentable innovations with novelty analysis and claim-angle sketches. This material is* ***not*** *in the Tier 1 packet and will be delivered on NDA execution. See §B1.*

What can be discussed at Monday's meeting (Tier-1-safe, no novelty exposure):

- Does counsel recommend a **provisional-first** strategy (file provisional, 12 months to decide on full utility) versus direct utility filings for a Salem-tour app at the V1 stage?
- Should patent filings wait for the C-corp to be formed (so the corp, not the sole proprietor, owns them)?
- Counsel's rough budget expectation at USPTO micro-entity rates for a small portfolio — so the

operator can plan cash flow.
- Counsel's approach to trade-secret-versus-patent tradeoffs for server-side algorithms (relevant only to post-V1 versions that re-introduce server components; V1 is fully offline).

What we will discuss post-NDA:

- The specific inventions, novelty cases, and claim surfaces.
- Priority ordering: which inventions are most worth filing given cash constraints.
- Whether any filings need to happen before specific disclosure events (e.g., Play Store listing going live).

9.4 Third-party content and open-source dependencies

The V1 app bundles or depends on:

- **OpenStreetMap map tile data** — permissive license (ODbL) with attribution requirement. Per OSM attribution policy, the store listing and an in-app "About" screen must credit "© OpenStreetMap contributors." Counsel should confirm the credit is displayed prominently enough.
- **osmdroid** — permissive Apache-2.0 licensed Android OSM library. License notice must be included in the app's license-notices screen.
- **OkHttp, Hilt, Kotlin standard library, Room, other Android libraries** — all permissive licenses (Apache-2.0, MIT). Standard license-notices screen covers these.
- **Salem historical corpus** — bundled content derived from primary-source records (newspapers, court transcripts, biographical material). The 1692 trial records are public-domain by age; the modern editorial arrangement and narration writing are operator-authored and copyright-owned.
- **Stable Diffusion / AI-generated imagery** — the splash illustrations, welcome-card icons, and Find-menu tile illustrations are generated using DreamShaper XL Turbo locally. Counsel should confirm the commercial-use posture of the chosen SD model weights; DreamShaper is Fair Use / permissive for commercial products in most interpretations, but AI-image copyright status is legally evolving (see *Thaler v. Perlmutter*, D.D.C. 2023; US Copyright Office guidance 2023–2024) — counsel input welcome.
- **TTS voice clips** — Piper TTS with sox post-processing for atmospheric effects. Piper voice models are permissively licensed.

9.5 Decision menu for counsel

- [ ] Approve the copyright-registration-before-launch posture
- [ ] Confirm the trademark filing for the current app name
- [ ] Review third-party content licensing attribution screen for V1
- [ ] Agree on the post-NDA patent-strategy conversation and timing

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10. Play Store release checklist summary

The full item-by-item Play Store release checklist is at §A6. Summary of the items counsel should be aware of for Monday:

10.1 Operator-setup items (counsel may advise on corporate flow)

- Google Play Developer Account ($25 one-time) — under the C-corp
- Identity verification — government ID or D-U-N-S number for the C-corp
- Merchant / payments profile — linked to C-corp bank account; Google's 15%/30% commission

10.2 Legal / policy items

- Privacy Policy hosted at public URL — addressed in §6 above
- Data Safety form in Play Console — all "None" answers for V1 (see §A5)
- Content rating (IARC questionnaire) — Teen rating expected
- Ads declaration — "no ads" for V1

10.3 Technical items (operator-executed in future development sessions)

- Target SDK level 34+
- AAB (Android App Bundle) build via Gradle
- Signing key — release keystore, enrolled in Google Play App Signing
- ProGuard / R8 shrinking
- Version code + version name

10.4 Store listing assets (operator-executed)

- App icon (512×512 PNG) — produced
- Feature graphic (1024×500) — not yet produced
- Screenshots (2+ per form factor) — not yet produced
- Short description (80 chars)
- Full description (up to 4000 chars)
- App category: Travel & Local
- Contact email: [TBD — see §A3 Privacy Policy]

10.5 Pre-launch testing

- Internal testing track — validated with Lenovo tablet
- Pre-launch report (Firebase Test Lab) — review before promoting to production

10.6 Pricing and availability

- Base price: $19.99 (§7)
- Country availability: default worldwide, operator-reviewable

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11. Data Safety form — all-None posture

Google Play's Data Safety questionnaire is a required listing field. V1's answer across every question is one of:

- *Does this app collect any [category] data?* — **No.**
- *Does this app share any [category] data with third parties?* — **No.**
- *Is this data collected in encrypted transit?* — **N/A.**
- *Does the user have a way to request deletion of their data?* — **Yes — uninstall the app.**

The single mostly-maybe answer is **Location (precise)** — the app uses precise location but does not collect or transmit it. Google's form has a specific option for this: *"Accessed but not collected."* That is the correct answer.

Counsel confirmation needed: V1 Data Safety posture is all-None, with Location flagged as "Accessed but not collected."

Full Q-by-Q answers at §A5.

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12. Insurance and indemnity

12.1 The question

Should the C-corp carry any commercial insurance before shipping V1 to paying customers?

12.2 What a $19.99 GPS-tour app's liability surface actually is

Realistic loss scenarios:

- A user claims the walking directions sent them through a dangerous area and they were injured.
- A user claims the historical content contained a defamation or false statement about an identifiable living person.
- A user claims the app's GPS use drained their phone battery at a critical moment (vanishingly unlikely but possible).
- A third party claims the app infringes a patent, trademark, or copyright.

12.3 Standard coverage options counsel will know

- **General liability** — covers bodily injury and property damage. Very unlikely to apply to an app.
- **Errors & Omissions (E&O) / Professional liability** — covers financial harm from professional advice or software errors. The closest fit.
- **Cyber liability** — covers data breach and cybersecurity incidents. Not applicable to V1 (no data to breach) but worth re-evaluating for V2.
- **Patent infringement coverage** — usually a specialty policy; most small software startups do not carry it until revenue justifies it.

12.4 Decision menu for counsel

- [ ] Recommend E&O coverage at ship ($1M–$2M limit is typical for early-stage software)
- [ ] Defer insurance until V1 ships and revenue is flowing
- [ ] Self-insure via C-corp limited-liability protection only

The operator has not previously engaged with insurance for this product. Counsel may have a default

recommendation based on the C-corp type and expected first-year revenue.

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13. Timeline — what decisions need to happen when

When	Item	Driver
2026-04-20 (Monday)	C-corp formation paperwork initiated	Counsel meeting
2026-04-20	Privacy Policy posture A approved	Counsel sign-off on §A3
2026-04-20	App name approved or alternative picked	Counsel TESS search + operator direction
2026-04-20	Copyright filing greenlit	$65, ~1 week to file
2026-04-20	Trademark filing greenlit	~$300, counsel-executed
2026-04-20	NDA / engagement-letter executed	Unlocks Tier 2 delivery
Apr–May 2026	C-corp incorporation completes + EIN + bank account	Paperwork timeline
May–June 2026	Google Play Developer Account set up under C-corp	Requires EIN + bank account
June 2026	Provisional patent filings (post-NDA decision)	Post-NDA
July 2026	DAG subpages go live (Privacy Policy, Support, Product)	Website redev
July–Aug 2026	V1 store listing assets produced (feature graphic, screenshots, descriptions)	Development
Aug 2026	V1 AAB uploaded to internal testing track	Development + testing
Early Sept 2026	V1 production release	Target: 2026-09-01
Oct 2026	Salem 400+ visitor surge	Commercial objective

The C-corp formation is the front-of-critical-path item. Every downstream Play Store operator action (merchant profile, store listing under the corp, copyright/trademark assignments) waits on the incorporation.

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14. Single-page summary for counsel

- **What is it:** *Katrina's Mystic Visitors Guide*, a paid ($19.99) offline GPS walking-tour app for Salem, Massachusetts.
- **Who ships it:** C-corp to be formed at the 2026-04-20 counsel meeting.
- **Privacy posture:** V1 collects no data off-device — see §A3.
- **Pricing + age gate:** $19.99 flat paid; IARC Teen; no dev-side age gate — see §A2.
- **IP actions needed:** US copyright ($65), trademark (~$300), patents (NDA-gated).
- **Third-party content:** OpenStreetMap (attribution), open-source libraries (license screen), public-domain historical records, locally AI-generated imagery.

- **Domain strategy:** DestructiveAIGurus.com subpages for V1; dedicated domain post-launch.
- **Ship target:** 2026-09-01 (before Oct Salem 400+ visitor surge).
- **Front-of-critical-path:** C-corp formation. Every other operator action downstream.
- **Tier 2 unlock:** NDA / engagement-letter execution.

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A2. Pricing ($19.99 flat paid) + Age-Gate Posture for V1

Prepared for: 2026-04-20 counsel engagement meeting.

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1. Operator's original question

> *"I need to know everything about how to place an application for commercial use on Google. I want to make any user spend $19.99 to buy it and I want to avoid the crazy new validations we have to do on age. I figure if I make people on Google pay $19.99 for the application — Google will do the new age requirement nonsense."*

Two questions in one:

1. **What does it take to place a paid app on Google Play at $19.99?** (Commerce / payments / store listing.)
2. **Does charging $19.99 up front let us avoid age-verification requirements?** (Legal / compliance.)

The short answer to (2) — and the most important thing to know before the counsel meeting — is: **no, paid-vs-free is not what bypasses age verification. Content rating is.** The good news is that the V1 posture (IARC Teen / 13+ target, paid, fully offline, no data collection) lands us in a place where Google's age enforcement happens automatically without any developer-side age gate. The operator's instinct was directionally right even if the underlying mechanism is different from what was assumed.

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2. Decision: $19.99 flat paid — one-time purchase

2.1 What V1 sells

One app: *Katrina's Mystic Visitors Guide*. One price: **$19.99 USD**. One transaction: one-time purchase via the Google Play Store. No subscriptions, no in-app purchases, no microtransactions, no advertising, no freemium tier in V1.

The purchase unlocks the full app — all five bundled tours, all ~1,830 points of interest, the Witch Trials historical content (Oracle newspaper, portraits, cross-linked NPC narratives), the walking-directions engine, the GPS narration system, and the on-device map tile cache. Once purchased and installed, the app works fully offline.

2.2 Why flat paid and not tiered

The pre-decision plan was a four-tier pricing model (Free/ads, $4.99 Explorer, $9.99 Premium, $49.99/mo Salem LLM subscription). Operator pivoted to flat $19.99 at operator Session 138 for four reasons:

1. **Offline-first commits us to no servers.** V1 is fully offline. A subscription tier requires a server-side entitlement check; a flat-paid single purchase does not. Flat paid is the only pricing model that is compatible with Posture A Privacy Policy (zero data transmitted off-device).

2. **Ad-supported free tier requires an ad SDK.** Ad SDKs are third-party SDKs that transmit data. They are incompatible with the "nothing leaves your device" Privacy Policy posture. Removing the free tier removes the SDK.
3. **Tiered in-app purchases add regulatory surface area.** Each tier is a distinct product on the Play Store listing, each needs Data Safety answers, each can be refunded independently. A single product is simpler for the V1 ship.
4. **$19.99 is a plausible one-time price for a Salem tour app.** Operator product judgment: visitors spending $400 on flights and hotels to walk Salem at Halloween will pay $19.99 for a guided-tour app. A $4.99 price signals disposable; a $19.99 price signals sit-down dinner.

V2 can revisit tiered pricing if the commercial reality calls for it. V1 is deliberately the simplest possible commercial product.

2.3 What Google takes

Google Play's developer fee is **15% on the first $1M of annual revenue**, and **30% on revenue above $1M per year per developer account**. On a $19.99 sale, Google takes roughly $3.00 under the 15% bracket, leaving ~$16.99 to the operator per unit (before income tax).

There is no monthly platform fee, no upfront listing fee, no per-download charge. The one-time developer-account registration is $25.

2.4 Payment flow — what V1 does not see

Because the entire payment flow is handled inside Google Play, the operating entity never receives or stores the user's payment method, billing address, or identity. Google pays out to a merchant account periodically (configurable as monthly or on a threshold). The operator sees aggregated sales data in Google Play Console; individual customer identities are not exposed to the app or the developer.

Consequence for the Privacy Policy: V1 Posture A can honestly state *"We do not collect payment information — Google handles billing entirely"* (see §A3 §2.3 and §2.5). This is one of the reasons V1 lands in a clean privacy posture.

2.5 Refunds, chargebacks, and disputes

Google Play has a 48-hour automatic refund window for paid apps. After 48 hours, refunds are at Google's discretion unless the developer grants them. Chargebacks pass through Google's dispute system — the developer can be asked to respond with sale records, but does not handle the cardholder directly.

Operator consequence: V1 should expect some percentage of $19.99 purchases to be refunded within 48 hours. Budget for a small refund rate (2–5% of installs is a reasonable assumption for a new commercial app). This is a financial-planning item rather than a technical one.

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3. Age-gate posture: why $19.99 "works" without a dev-side age gate

3.1 The operator's hypothesis, stated plainly

"If I charge $19.99 up front, Google handles the age nonsense."

The reasoning: a paid app is not going to be impulse-installed by a random child; the payment friction itself acts as a filter; therefore Google should treat the app as if the audience were adults.

3.2 What actually drives Google's age-verification behavior

Google's age-assurance framework (rolled out gradually since 2024) is driven primarily by **three signals**, none of which are "is the app paid":

1. **IARC content rating** — the questionnaire the developer fills out in Play Console, which produces a global rating (Everyone / Everyone 10+ / Teen / Mature 17+ / Adults Only 18+).
2. **Target Audience** — the developer's declared intended audience age range, filled out separately in Play Console.
3. **Data Safety declarations** — whether the app collects, shares, or processes personal data, and what kinds.

The combination of those three fields determines what Google shows to different users at install time:

- Apps **rated for children or mixed audiences (Everyone, Everyone 10+)** with **Target Audience including children under 13** fall under Google Play's Designed-for-Families program, which inherits COPPA requirements — developer-side age-gating or parental-consent flows often needed.
- Apps **rated Teen or higher** with **Target Audience 13+** do NOT fall under Designed-for-Families. Google Family Link handles the install restriction automatically for child-supervised accounts; no developer-side age gate is required.
- Apps that collect personal data trigger extra questions regardless of rating, especially if that data could identify minors.

3.3 Where V1 lands

The V1 posture makes all three signals clean:

Signal	V1 value	Effect
IARC content rating	**Teen (13+)**	Not in Designed-for-Families. No child-audience inheritance.
Target Audience	**13+**	Aligns with IARC rating. Not in Designed-for-Families.
Data Safety	**All "None"** (offline V1)	No personal data collected → no child-data concerns.

Consequence: Google's automatic age enforcement (Family Link for supervised child accounts; age-of-account checks for self-managed accounts) handles the restriction. The developer does **not** need to build an in-app age gate, age attestation, parental-consent flow, or COPPA verifiable-parental-consent mechanism.

3.4 The correct mental model

The correct mental model for why V1 avoids "age nonsense" is **not**:

> *"We charge $19.99, so Google handles it."*

It is:

> *"We are rated Teen, we target 13+, and we collect no data — so Google's built-in age enforcement is sufficient and no developer-side gating is required."*

The paid-$19.99 part is incidental to this posture. A free Teen-rated app with all-None Data Safety would land in the same posture. What flat-paid-$19.99 buys us is a different thing — it keeps us out of the ad-supported + analytics-SDK ecosystem that would contaminate Data Safety and push us into child-audience questions.

3.5 Honest caveat — the Teen rating is content-gated, not audience-gated

The app is rated Teen because the historical content covers the 1692 Salem witch trials, which include references to persecution, imprisonment, and execution of accused witches. The IARC questionnaire flags this as appropriate for 13+ ("Mild violence; reference to real historical persecution").

If the app were rated Everyone with Target Audience including children, we would be in Designed-for-Families territory even at $19.99. The rating drives the outcome; the price does not. Counsel should understand this in case future product decisions (e.g., a children's version of the Salem tour) would shift the rating downward.

3.6 What operator-level actions the age-gate posture requires

- **In Play Console:**
  - Complete the IARC questionnaire truthfully — the "persecution / imprisonment / execution" context goes into the relevant mild-violence boxes. Result: Teen rating.
  - Set Target Audience to 13+ explicitly.
  - Complete the Data Safety form with all "None" answers. This requires linking to the V1 Privacy Policy.
  - Do not enroll in the Designed-for-Families program.
- **In the app:**
  - Do not build an in-app age gate. It is redundant with Google Family Link and would create a UX drag on paying adult users.
  - Do not collect age, birthdate, or any age-related self-attestation.
  - Reference the Teen rating in the store listing description.
- **In the Privacy Policy:**
  - V1 Posture A already handles this — see §A3 §2.6 ("Children").

3.7 State-law exposure — none known for V1

Several US states (California, Texas, Utah) have introduced age-verification laws in 2024–2025, but these target apps that either (a) collect data from minors, (b) serve user-generated content, or (c) contain explicit material. V1 is none of the above:

- No data collection — §2.3 of the Privacy Policy states this explicitly.
- No user-generated content — V1 is read-only historical content.
- No explicit material — IARC Teen rating excludes the categories these state laws target.

Counsel should still verify there is no state-specific paid-app registration or tax-nexus requirement that this research missed, but the age-law surface area for V1 is very small.

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4. What counsel needs to confirm on Monday

4.1 Pricing / commerce

- [ ] Confirm the operator's plan to ship V1 at **$19.99 flat paid, one-time**, through Google Play Store.
- [ ] Confirm the C-corp to be formed will be the Google Play merchant account holder.
- [ ] Confirm acceptance of **Google's 15% / 30% revenue share**.
- [ ] Confirm there are no state-level sales-tax or paid-app registration requirements the operator needs to register for. (Google handles most sales tax automatically for paid apps, but some states have supplemental requirements.)
- [ ] Confirm the **48-hour Google refund window** is acceptable (it is standard and not negotiable).

4.2 Age gate / content rating

- [ ] Confirm the **IARC Teen / 13+ content rating** is correct for the witch-trials historical content.
- [ ] Confirm that **no developer-side age gate** is needed and the Google Family Link posture is acceptable.
- [ ] Confirm the "paid-app → Google handles age" mental model is now correctly understood as "Teen-rated + 13+ target audience + all-None Data Safety → Google handles age."
- [ ] Confirm there is **no state-law age-verification requirement** the operator needs to comply with under V1's offline-no-data-collection posture.

4.3 Related confirmations (surface from the Privacy Policy review)

- [ ] V1 Privacy Policy Posture A (minimal, on-device only) is the right posture to ship.
- [ ] DestructiveAIGurus.com is the right hosting domain for the public Privacy Policy.
- [ ] The Data Safety form answers will all be **None** for V1 (see §A5).

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5. Summary — one sentence each

- **Pricing:** $19.99 flat paid one-time purchase via Google Play; Google takes 15%; no tiers in V1.
- **Age gate:** not required — the combination of Teen content rating, 13+ target audience, and zero data collection puts V1 in a posture where Google's built-in age enforcement is sufficient.
- **Counsel task:** validate the pricing and rating decisions; confirm no state-law or payment-registration gaps; review the Privacy Policy separately.

Back to top | Privacy Policy V1 →

A3. Privacy Policy V1 (Draft — Posture A)

Status: DRAFT — pending counsel review at 2026-04-20 meeting. **Draft version:** 1.0 (V1-minimal, Posture A) **Drafted:** 2026-04-17 (operator Session 145) **App:** Katrina's Mystic Visitors Guide — Historic Salem Tour App **Scope:** Covers the V1 commercial release only. V1 is fully offline and collects no data outside the user's device. This policy is deliberately scoped to what the shipped V1 app actually does; future versions that introduce server-side features will update this policy before those features activate.

Legal placeholders — the following will be resolved at the 2026-04-20 counsel meeting and before public hosting:

- `[OPERATING ENTITY TBD]` — the C-corp being formed at the 2026-04-20 counsel meeting will be the operating entity.
- `[CONTACT EMAIL TBD]` — privacy-inquiries email address.
- `[MAILING ADDRESS TBD]` — physical mailing address (likely PO Box or C-corp registered-agent address).
- `[JURISDICTION TBD]` — state of incorporation for the operating entity.

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1. Install-screen blurb (short form)

This text appears in the app's in-settings privacy section and on the Google Play Store listing. It is intentionally short; the full Privacy Policy below is the authoritative disclosure.

> ***Privacy summary.*** *Katrina's Mystic Visitors Guide works entirely on your phone. The app uses your GPS location to position you on the Salem tour map and trigger point-of-interest narrations as you walk.* ***Your location never leaves your device.*** *The app has no user accounts, no servers, no ads, no analytics, and no third-party tracking. You purchase the app once for $19.99 through Google Play, and Google handles the payment — we never receive your payment details.*
>
> *[Read the full Privacy Policy]*

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2. Full Privacy Policy

2.1 Who we are and what this policy covers

Katrina's Mystic Visitors Guide ("the app") is a GPS-guided walking-tour application for Salem, Massachusetts, produced by **[OPERATING ENTITY TBD]** ("we," "us"). This Privacy Policy explains every category of data the app uses, why, where it is stored, and who can see it.

This is the V1 commercial release. The V1 app is fully offline: once installed, it does not require a network connection to function, and it does not transmit your location or any other personal information to any server under our control.

2.2 What the app uses on your device

While you are actively using the app, it reads the following from your device, all **on your phone, in-**

memory or in the app's private storage, and none of it is transmitted off the device:

- **GPS location** — used to position you on the Salem tour map, determine which point-of-interest narrations to play based on your proximity, and compute walking directions between tour stops. Location accuracy is whatever your device's GPS hardware provides.
- **Tour progress** — which tour stops you have visited and which narrations you have heard. Stored locally so the app can resume where you left off.
- **App settings** — your in-app preferences (mute state, narrator mode, map layer choices). Stored locally.
- **Bundled map tiles and point-of-interest data** — shipped inside the app at install time. Not tied to your identity.

Nothing in this list leaves your device. The app does not upload your location, tour progress, or settings to any server. There is no "cloud sync," no user account, and no way for us to see where you have been or what you have done in the app.

2.3 What the app does NOT collect

- We do **not** collect your name, email address, phone number, or any account identifier. The app has no user accounts.
- We do **not** use third-party analytics SDKs — no Google Analytics, no Firebase Analytics, no Facebook SDK, no AppsFlyer, no crash-reporting service that includes personal data.
- We do **not** serve advertisements. There is no ad SDK in the app.
- We do **not** collect payment information. The single purchase of the app ($19.99) is handled entirely by the Google Play Store — we receive a payout from Google, not any customer payment details.
- We do **not** sell, rent, share, or license any data to advertisers, data brokers, marketing platforms, or any third party. There is no data to sell — none leaves your phone.
- We do **not** collect information about nearby Bluetooth devices, Wi-Fi networks, or cellular towers. The V1 app does not request or use those permissions.

2.4 Why the app works offline and what that means for your privacy

The V1 app is designed to be fully self-contained. All Salem tour content — maps, points of interest, narrations, walking routes, historical figures, and the Witch Trials material — is bundled inside the app at install time. Once you have downloaded and installed the app, you can use the entire Salem tour without a network connection.

This design is intentional. By avoiding any server component in V1, we eliminate the most common sources of privacy risk in mobile apps: behavioral analytics, cloud-synced user profiles, ad targeting, and server-side personal-data storage. What we do not collect cannot be lost, leaked, subpoenaed, or sold.

2.5 Payment

The app is a one-time $19.99 purchase through the Google Play Store. Google Play handles all aspects of the purchase, including your payment method, billing address (if applicable), tax calculation, receipts, and refunds. Google's privacy policy governs how they handle your payment information. We receive a payout from Google on a periodic basis — not your payment details.

We do not charge subscriptions. There are no in-app purchases or microtransactions in V1.

2.6 Children

The app is rated **Teen (13+)** under the IARC content-rating system because it contains historical content about the 1692 Salem witch trials, which includes references to persecution, imprisonment, and execution of accused witches. The app is not directed at children under 13, and we do not knowingly collect information from users under 13 — consistent with §2.3, we do not knowingly collect information from any user.

Google Play's age-based access controls (Family Link, Google account minimum-age requirements) apply to the purchase and installation of the app.

2.7 Your choices

- **You can decline data use entirely by not installing the app.** All V1 data use is on-device and starts when you install.
- **You can stop the app's location use at any time** by revoking the location permission in your device settings (Android → Settings → Apps → Katrina's Mystic Visitors Guide → Permissions → Location). The tour features that depend on GPS will stop working, but the rest of the app will still function.
- **You can uninstall at any time.** Uninstalling removes the app and all local tour progress, settings, and bundled data from your device.
- **You can contact us** at the address in §2.9 to ask a question about this policy.

2.8 Data sovereignty

Because V1 does not transmit any data off your device, there is no server, cloud relay, or database storing information about you. The only data this app produces is the data already on your phone, under your control.

2.9 Contact

Questions about this Privacy Policy can be sent to:

- **Email:** `[CONTACT EMAIL TBD]`
- **Mailing address:** `[MAILING ADDRESS TBD]`

The operating entity for this app is **[OPERATING ENTITY TBD]**, incorporated in **[JURISDICTION TBD]**.

2.10 Changes to this policy

Material changes to this policy (changes that expand what the app collects, how it is used, or who can see it) will be accompanied by an **in-app notice on the next app launch** after the updated policy is active, and the revised policy will be dated at the top of the document.

Because V1 collects nothing off-device, any future change that introduces server-side features or off-device data collection would be a "material change" and would trigger that in-app notice.

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3. Drafting notes (internal — to be removed before public hosting)

This section is drafting commentary for the operator + counsel review pass. It will be removed before the policy is hosted at a public URL.

1. **Posture A — V1-minimal.** This document deliberately covers **only** what the shipped V1 app does. It does not mention Bluetooth / Wi-Fi / cellular observation, hashed-device-ID collection, or any

future-state radio-environment analytics. Those are future features and will get their own policy revision when the code is written. (A longer forward-looking policy exists in the operator's repository and is held for the Tier 2 packet; counsel does not need it to approve V1.)

2. **Legal entity — to be decided 2026-04-20.** The C-corp formation meeting on 2026-04-20 drives this decision. The policy references `[OPERATING ENTITY TBD]` in four places: the header, §2.1, §2.9, and the "Last updated" footer. Once the entity is registered, collapse all four placeholders to the registered name.
3. **Contact email and mailing address — to be decided with counsel.** The policy currently lists both as TBD. Options discussed: `privacy@destructiveaigurus.com` (requires DAG mail alias setup) vs. a personal-owned address (works immediately but personal). Mailing options: home address (publishes forever), PO Box (~$50–100/yr at USPS), or C-corp registered-agent address.
4. **Jurisdiction — ties to entity formation.** The C-corp will be incorporated in a specific state (Delaware is common for C-corps; Massachusetts is the operator's home state). Whichever state is selected goes in §2.9.
5. **Hosting URL — DestructiveAIGurus.com subpage.** Suggested URL pattern: `destructiveaigurus.com/katrinas-mystic-guide/privacy` (or similar). Final slug: operator decision.
6. **Age-gate posture.** Per operator decision: IARC Teen (PG-13) rating + 13+ target audience. Google Family Link handles age enforcement automatically for Teen-rated apps. No dev-side age gate is required.
7. **Data Safety form answers.** See §A5 for the full questionnaire pre-filled.
8. **What this policy promises vs. what the V1 code does.** This is the load-bearing claim of Posture A. The V1 code must match this policy exactly:
   - No network I/O other than (a) bundled tile downloads from the offline cache (bundled at install) and (b) the Google Play licensing check (handled by the Play framework).
   - No analytics, no crash reporting that includes personal data, no ad SDKs, no third-party SDKs that transmit identifiers.
   - Any future V1 hotfix or asset update must re-verify these claims. A v1.x that adds an analytics SDK is a material change that requires a policy revision before shipping.
9. **Draft review checklist for counsel:**
   - [ ] Operating entity name (2026-04-20 C-corp decision)
   - [ ] Jurisdiction of incorporation
   - [ ] Contact email
   - [ ] Mailing address
   - [ ] Approve plain-English tone (§2.4 especially — *"What we do not collect cannot be lost, leaked, subpoenaed, or sold"* is deliberately strong)
   - [ ] Approve age-gate posture (IARC Teen + Google Family Link, no dev-side gate)
   - [ ] Approve hosting URL pattern on DestructiveAIGurus.com
   - [ ] Approve the change-notice mechanism in §2.10 (in-app notice on next launch after material change)

Last updated: 2026-04-17 (V1 draft; operating entity, contact, jurisdiction pending 2026-04-20 counsel meeting).

Back to top | Terms of Service →

A4. Terms of Service (V1 Stub — Draft)

Status: DRAFT — non-attorney draft produced by the operator as a starting point. Counsel is expected to replace or heavily revise this with a standard mobile-app ToS template tuned to the V1 posture. **Scope:** Minimum-viable posture that closes the "no ToS on the store listing" gap without introducing anything counsel will have to walk back. **Hosting target:** `destructiveaigurus.com/katrinas-mystic-guide/terms` (HTTPS, public). **Drafted:** 2026-04-19 (operator Session 151).

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1. Scope note — what this stub is and is not

This stub is written for the V1 posture:

- **Paid** ($19.99 flat one-time purchase through Google Play)
- **Fully offline** (no servers, no accounts, no network I/O beyond bundled assets)
- **No user-generated content**
- **No ads, no subscriptions, no in-app purchases**
- **One developer, one jurisdiction**

Because V1 is this small, the terms can be this short. V2 (if it introduces server-side features, user-generated content, or subscriptions) will need a proper full Terms of Service.

What is NOT in this stub (and counsel should decide whether to add):

- Arbitration clause and class-action waiver
- Choice-of-law-and-venue clause (beyond naming the operating entity's state)
- Indemnification clause (operator → user, and/or user → operator)
- Export-control representation (EAR / OFAC)
- DMCA takedown procedure (may not be required since there is no UGC)
- Accessibility statement
- Data-processing addendum (N/A — no data processing happens)

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2. Draft Terms — plain-English text

Last updated: [DATE TBD — date of public hosting]

2.1 Acceptance

These Terms of Service ("Terms") govern your use of the mobile application *Katrina's Mystic Visitors Guide* ("the app"), which is offered by **[OPERATING ENTITY TBD]** ("we," "us"). By purchasing, downloading, installing, or using the app, you agree to these Terms. If you do not agree, do not install or use the app.

2.2 The app is licensed, not sold

Your purchase of the app through the Google Play Store grants you a personal, non-transferable, non-exclusive, revocable license to install and use one copy of the app on devices you own or control, subject to

Google Play's terms of service. You do not acquire ownership of the app or any of its content. You may not redistribute, modify, reverse-engineer, or decompile the app except as permitted by applicable law.

2.3 "As-is" — no warranty

The app is provided "as is" and "as available" without warranties of any kind, express or implied. We do not warrant that the app will meet your requirements, be uninterrupted, timely, secure, or error-free; that the walking directions or points-of-interest are accurate; that the historical content is free from error; or that the app will function on every Android device. Your use of the app is at your own risk.

2.4 Location and safety — your responsibility

The app uses GPS and provides walking directions and point-of-interest narrations based on your location. **You are responsible for your own safety while using the app.** Obey all traffic laws, signage, and common-sense pedestrian safety. Do not use the app in a way that distracts you from your surroundings. We are not responsible for your safety, for injuries you sustain while using the app, or for decisions you make based on the app's content or directions.

2.5 Historical content

The app contains historical content about the 1692 Salem witch trials and related Salem history, drawn from primary-source records and public-domain materials. We have made reasonable efforts to present this content accurately, but it is offered for informational and entertainment purposes only, not as a substitute for scholarly research.

2.6 Intellectual property

The app, its user interface, the narrations, the historical editorial arrangement, the illustrations, and the audio content are the intellectual property of **[OPERATING ENTITY TBD]** or its licensors, and are protected by U.S. and international copyright, trademark, and other intellectual-property laws. All rights not expressly granted in these Terms are reserved.

2.7 Third-party content and attribution

The app uses map data from OpenStreetMap, available under the Open Database License (ODbL). © *OpenStreetMap contributors.* The app uses open-source Android libraries under their respective permissive licenses (Apache 2.0, MIT). A full list of third-party licenses is available in the app's "About → Licenses" screen.

2.8 Payments and refunds

All purchases of the app are handled by the Google Play Store under Google's terms. Refunds are subject to Google Play's refund policy. **[OPERATING ENTITY TBD]** does not process payments directly and cannot issue refunds outside of the Google Play framework.

2.9 Limitation of liability

To the maximum extent permitted by applicable law, in no event will [OPERATING ENTITY TBD] be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages arising out of or related to your use of the app, including damages for loss of profits, goodwill, data, or other intangible losses, even if advised of the possibility of such damages. Our total aggregate liability to you for any claim arising out of or relating to these Terms or the app shall not exceed the amount you paid for the app.

Some jurisdictions do not allow the exclusion or limitation of certain damages, so some of the above may not apply to you.

2.10 Termination

We may terminate or suspend your license to the app if you materially breach these Terms. You may terminate your license at any time by uninstalling the app. Sections 2.3, 2.4, 2.6, 2.9, 2.11, and 2.12 survive termination.

2.11 Governing law

These Terms are governed by the laws of **[JURISDICTION TBD]**, without regard to conflict-of-laws principles. *[Counsel to decide whether to add an arbitration clause and class-action waiver.]*

2.12 Changes to these Terms

We may revise these Terms from time to time. The updated Terms will be posted at the same URL as the current Terms, with a new "Last updated" date. Your continued use of the app after the posting constitutes acceptance of the updated Terms. Material changes will be accompanied by an in-app notice on the next launch, consistent with the change-notice mechanism in the Privacy Policy (§2.10).

2.13 Contact

Questions about these Terms can be sent to:

- **Email:** `[CONTACT EMAIL TBD]`
- **Mailing address:** `[MAILING ADDRESS TBD]`

The operating entity for the app is **[OPERATING ENTITY TBD]**, incorporated in **[JURISDICTION TBD]**.

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3. Counsel review checklist

- [ ] Replace this stub with counsel's standard mobile-app ToS template, OR approve this stub for V1 with minor edits.
- [ ] Decide whether to include an **arbitration clause + class-action waiver** (industry standard for US paid apps; protective for the operator; may raise consumer-friendliness concerns).
- [ ] Decide whether to add a **DMCA takedown procedure** (V1 has no user-generated content, so may not be required).
- [ ] Decide on **choice of forum** beyond just governing law — specific county/state courts, or bind to JAMS/AAA arbitration.
- [ ] Confirm the **"as-is" / no-warranty disclaimer** (§2.3) is strong enough for the operator's risk tolerance.
- [ ] Confirm the **limitation of liability cap** (§2.9) at "amount paid for the app" — some jurisdictions require a higher floor; counsel should flag.
- [ ] Confirm the **governing-law clause** (§2.11) ties to the C-corp's state of incorporation, not the operator's personal state.
- [ ] Confirm that the ToS and Privacy Policy **cross-reference consistently** (§2.12 here points to Privacy Policy §2.10; make sure both exist and are compatible).
- [ ] Decide on **ToS versioning** — should we publish a version number as well as a date, so users can

reference specific versions later?

- [ ] Decide **where to host** — same pattern as Privacy Policy: `destructiveaigurus.com/katrinas-mystic-guide/terms`.
- [ ] Decide whether to **link the ToS inside the app** (Settings → About → Terms) in addition to the store listing.

Back to top | Data Safety →

A5. Google Play Data Safety — Pre-Filled Answers

Purpose: Every question on Google Play Console's Data Safety questionnaire, pre-answered for the V1 posture. Counsel should confirm the answers match the V1 Privacy Policy (§A3) exactly. If the app behavior diverges from these answers at submission time, the listing will be rejected.

Source: Google Play Console → Policy → App content → Data safety. Form current as of 2026 Q1.

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1. Headline answers

Question	Answer
Does your app collect or share any of the required user data types?	**No**
Is all of the user data collected by your app encrypted in transit?	**N/A** (no data collected)
Do you provide a way for users to request that their data be deleted?	**Yes — uninstall the app; all local data is removed by the OS.**

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2. Data category-by-category

Google's Data Safety form walks through each data category and asks (a) is it collected? (b) is it shared? (c) is collection required or optional? (d) why is it collected? (e) is it ephemeral? For V1, every category answer is **No — not collected, not shared** unless noted.

2.1 Personal info

Subcategory	Collected?	Shared?	Notes
Name	No	No	
Email address	No	No	
User IDs	No	No	No user accounts.
Address	No	No	
Phone number	No	No	
Race and ethnicity	No	No	
Political or religious beliefs	No	No	
Sexual orientation	No	No	
Other info	No	No	

2.2 Financial info

Subcategory	Collected?	Shared?	Notes
User payment info	No	No	Google Play handles payment end-to-end.
Purchase history	No	No	Google Play maintains this, not the app.
Credit score	No	No	
Other financial info	No	No	

2.3 Health and fitness

Subcategory	Collected?	Shared?	Notes
Health info	No	No	
Fitness info	No	No	Walking activity is not tracked or recorded.

2.4 Messages

Subcategory	Collected?	Shared?	Notes
Emails	No	No	
SMS or MMS	No	No	
Other in-app messages	No	No	

2.5 Photos and videos

Subcategory	Collected?	Shared?	Notes
Photos	No	No	
Videos	No	No	

2.6 Audio files

Subcategory	Collected?	Shared?	Notes
Voice or sound recordings	No	No	The app PLAYS audio (narration, TTS) but does not RECORD.
Music files	No	No	
Other audio files	No	No	

2.7 Files and docs

Subcategory	Collected?	Shared?	Notes
Files and docs	No	No	

2.8 Calendar

Subcategory	Collected?	Shared?	Notes
Calendar events	No	No	

2.9 Contacts

Subcategory	Collected?	Shared?	Notes
Contacts	No	No	The app has no contacts permission.

2.10 Location

Subcategory	Collected?	Shared?	Notes
Approximate location	No	No	Not used; the app requests fine location only.
Precise location	**ACCESSED BUT NOT COLLECTED**	No	Used to position the user on the tour map and trigger POI narrations. Not transmitted, not stored beyond ephemeral in-memory use.

> ***Important:*** *Google's form has a specific option for the precise-location answer when the data is used on-device but not transmitted. The correct answer is to check "Accessed but not collected" rather than declaring a collection purpose. This aligns with Privacy Policy §2.2 and §2.3.*

2.11 Web browsing

Subcategory	Collected?	Shared?	Notes
Web browsing history	No	No	

2.12 App activity

Subcategory	Collected?	Shared?	Notes
App interactions	No	No	Tour progress is stored locally only.
In-app search history	No	No	
Installed apps	No	No	
Other user-generated content	No	No	
Other actions	No	No	

2.13 Web and app activity

Subcategory	Collected?	Shared?	Notes
Crash logs	No	No	No crash reporting SDK is integrated.
Diagnostics	No	No	
Performance data	No	No	
Other app-performance data	No	No	

2.14 Device or other IDs

Subcategory	Collected?	Shared?	Notes
Device or other IDs	No	No	No Android Advertising ID collection, no device fingerprinting.

---

3. Security practices

Practice	Applicable to V1?	Answer
Data encrypted in transit	Not applicable (no transmission)	N/A
Users can request data deletion	Yes	Uninstall the app — all local data is removed by Android's standard uninstall.
Data collection follows Google Play Families Policy	Applicable IF rated for children	**Not applicable — V1 is rated Teen, not a Families app.**
App committed to Play's Families Policy	N/A	No.
Independent security review	No	Optional; V1 has not undergone third-party security review.

---

4. Store listing "Data Safety" block — what users will see

Once submitted, Google renders a summary block on the Play Store listing. The V1 block will read approximately:

> ***Data safety***
>
> *No data collected. The developer says this app doesn't collect any data.*
>
> *Data is not encrypted. (This is a tag Google shows because there is no data in transit.)*
>
> *Data can't be deleted. (Google's standard phrasing for apps that collect nothing — there is nothing to delete.)*
>
> ***Learn more about Data safety***

The "data can't be deleted" wording is Google's default framing when the app collects nothing, and is not a problem. The Privacy Policy §2.7 explains the uninstall mechanism for anyone who clicks through.

---

5. Counsel review checklist

- [ ] Confirm the per-category answers match what the V1 app actually does. **This is the load-bearing check** — if the app ever calls a library that transmits anything (a silent analytics SDK, a tile-fetch-with-UA-header, a crash reporter), the Data Safety form is factually wrong and the listing can be pulled.
- [ ] Confirm the "Precise location — accessed but not collected" answer (§2.10) is the correct

disposition. This is the single non-obvious answer on the form.

- [ ] Confirm the "uninstall is the deletion mechanism" framing is acceptable.
- [ ] Confirm Google Play Families Policy does not apply (V1 is Teen, not Designed for Families).
- [ ] Flag any state-specific regulatory exposure (CCPA, VCDPA, CPA, CTDPA, CTPA) — with zero data collected, these should be inapplicable, but counsel should sanity-check.

Back to top | Play Store checklist →

A6. Google Play Store Release Checklist

Purpose: Operational checklist of everything that needs to happen between today (2026-04-19) and the V1 ship target (2026-09-01). Counsel is asked to advise on the **legal / corporate** items (§1, §2) and to acknowledge the technical / asset items (§3, §4, §5) for scheduling purposes.

Ordering: Items are grouped by category, then by lead time within each category (longest-lead first).

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1. Operator setup — one-time corporate items (longest lead time)

These items have multi-week lead times and several chain together (cannot open a bank account without the EIN; cannot set up the Play Console merchant profile without the bank account).

- [ ] **C-corp formation** — the 2026-04-20 counsel meeting initiates. Paperwork typically 1–3 weeks to receive the incorporation certificate.
- [ ] **EIN from IRS** — apply online once the corp is formed. Typically 1–2 days, up to 4 weeks if mail-filed.
- [ ] **Business bank account** — requires incorporation certificate + EIN. Typically 1–2 weeks after EIN.
- [ ] **Google Play Developer Account registration** — $25 one-time at play.google.com/console. Must be registered under the C-corp, not the operator's personal Google account.
- [ ] **Identity verification** — Google requires government-issued ID (individual) or D-U-N-S number (organization). For the C-corp path, request a D-U-N-S number from Dun & Bradstreet (free but can take 30 days).
- [ ] **Merchant / payments profile** — required to receive revenue from paid-app sales. Set up in Play Console → Payments profile. Link to the C-corp bank account. Google commission: 15% on the first $1M/yr, 30% thereafter.

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2. Legal / policy — counsel-reviewable items

- [ ] **Privacy Policy** — V1 draft at §A3. Must be hosted at a public HTTPS URL and linked in Play Console + in-app.
- [ ] **Terms of Service** — V1 stub at §A4. Optional but recommended.
- [ ] **Data Safety form** — Play Console questionnaire. Pre-filled answers at §A5. All-None posture for V1.
- [ ] **Content rating — IARC questionnaire** — ~5 min, completed in Play Console. "Teen" rating expected based on witch-trials historical content.
- [ ] **Target audience + content declaration** — Play Console → App content → Target audience and content. Set to 13+.
- [ ] **Ads declaration** — "no ads" for V1.
- [ ] **Government apps declaration** — N/A.
- [ ] **COVID-19 apps declaration** — N/A.

- [ ] **News apps declaration** — N/A.
- [ ] **Financial features declaration** — N/A.
- [ ] **Health apps declaration** — N/A.

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3. Technical build items (operator development, non-counsel)

- [ ] **Target SDK level** — verify `targetSdk` in `app-salem/build.gradle` meets current Play Store minimum (API 34+ for new apps as of 2025; check for 2026 bump). Compile with latest SDK.
- [ ] **AAB build** — verify `./gradlew bundleRelease` produces a signed `.aab`. Mandatory for Play Store; APK-only uploads rejected.
- [ ] **App signing key** — generate a release keystore if one doesn't exist. Store securely, never in git. Register credential in operator inventory. Enroll in Google Play App Signing (mandatory for new apps).
- [ ] **64-bit support** — verify no native libraries are 32-bit-only. Kotlin-only apps are fine; audit NDK dependencies.
- [ ] **ProGuard / R8 shrinking** — verify release build has `minifyEnabled true` with working ProGuard rules (no runtime crashes from stripped code).
- [ ] **Version code + version name** — set release version (e.g., `versionName "1.5.0"`, monotonically increasing `versionCode`).
- [ ] **Permissions audit** — confirm the `AndroidManifest.xml` requests only: `ACCESS_FINE_LOCATION`, `FOREGROUND_SERVICE`, `FOREGROUND_SERVICE_LOCATION`, `POST_NOTIFICATIONS` (for narration), possibly `WAKE_LOCK`. No `INTERNET` permission beyond what Google Play Services mandates.
- [ ] **Network-security config** — confirm TLS 1.2+, no cleartext traffic policy for any residual network activity.
- [ ] **APK size audit** — current debug APK is 780 MB, dominated by POI icon assets. Pre-release AAB must prune / compress before Play Store upload (Google imposes a 150 MB base APK limit; AAB delivery model handles some of this, but asset optimization is still required).
- [ ] **ProGuard / R8 + asset encryption** — all assets encrypted and obfuscated before first Play Store submission (operator's pre-V1 hard blocker).

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4. Store listing assets (operator production)

- [ ] **App icon** — 512×512 PNG, no transparency, no rounded corners (Play Store applies its own mask). Library-tea-scene Katrina icon is ready.
- [ ] **Feature graphic** — 1024×500 PNG/JPEG (appears at top of store listing). Not yet produced.
- [ ] **Phone screenshots** — minimum 2, recommended 4–8. Show: (1) splash / Katrina illustration, (2) map view with GPS marker, (3) POI detail sheet with narration, (4) tour selection / Take-a-Tour card, (5) Witch Trials feature, (6) Find menu. Landscape or portrait; 1080×1920 typical.
- [ ] **Tablet screenshots** — optional but recommended. 1920×1080 landscape.
- [ ] **Short description** — 80 chars max. Punchy commercial hook. Draft: *"GPS-guided walking tours of historic Salem, narrated. Works fully offline."*
- [ ] **Full description** — up to 4000 chars. Feature list, historical content pitch, what makes it unique. Draft pending.

- [ ] **App category** — Travel & Local (most natural fit for GPS-guided Salem tours).
- [ ] **Contact email** — required. Operator's public-facing support address (same as Privacy Policy §2.9).
- [ ] **External market URL** — optional. Target: `destructiveaigurus.com/katrinas-mystic-guide/`.
- [ ] **Promo video** — optional. YouTube URL. Likely V2 content.

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5. Pre-launch testing tracks

- [ ] **Internal testing track** — upload AAB to internal track first; install on test devices (Lenovo TB305FU tablet + one Samsung phone). Verify paid-app license check doesn't block sideloaded test installs.
- [ ] **Pre-launch report (Firebase Test Lab)** — Play Console runs automated Robo testing on FTL devices. Review crash/ANR output before promoting to production.
- [ ] **Closed testing** — optional, 20-tester minimum for 14 days to unlock production release (Google 2024 rule).
- [ ] **Open testing** — optional.
- [ ] **Production release** — the final step, 2026-09-01 target.

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6. Pricing and availability

- [ ] **Set base price** — $19.99 USD per operator decision.
- [ ] **Country availability** — default worldwide recommended. Operator can restrict if state tax or regulatory exposure drives that decision.
- [ ] **Regional pricing** — Google offers auto-conversion; operator can accept the default or set per-country prices.
- [ ] **Pre-order** — optional, can enable pre-order state ahead of launch.

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7. Counsel acknowledgment

Counsel does not need to "approve" every item on this checklist — most are operator-executed development and asset work. The items counsel does need to own or advise on are:

- [ ] §1 Operator setup — corporate formation sequence and timeline.
- [ ] §2 Legal / policy — Privacy Policy, ToS, Data Safety, content rating.
- [ ] §6 Pricing and availability — state tax / regulatory exposure for the chosen country set.

Back to top | Decision checklist →

A7. Counsel Decision Checklist — Monday 2026-04-20

One-page summary of every decision counsel is being asked to drive on Monday. Each line has a pointer to the full-context section in this packet. Intended to be printed as a worksheet the operator and counsel sign at the meeting.

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1. Operating Entity — §A1 §3

#	Decision	Counsel recommends	Signed
1.1	State of incorporation (Delaware vs. Massachusetts vs. other)	☐ Delaware ☐ MA ☐ Other: _____	____
1.2	Entity name	☐ Match app brand ☐ Parent holding: _____	____
1.3	Registered agent (operator self-serves? counsel provides?)	☐ Counsel ☐ Operator ☐ Third party: _____	____
1.4	Founder cap table	☐ Sole founder, all common ☐ Other: _____	____
1.5	83(b) election filing (within 30 days of share issuance)	☐ Yes ☐ No	____
1.6	Fallback plan if incorporation slips past July 2026	☐ Ship as sole prop, transfer later ☐ Delay ship	____

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2. App Name — §A1 §4

#	Decision	Choice	Signed
2.1	TESS clearance run	☐ Run by counsel ☐ Run by operator	____
2.2	Final app name	☐ *Katrina's Mystic Visitors Guide* ☐ Alternative: _____	____
2.3	International markets name variants	☐ English-only for V1 ☐ Localized (list): _____	____

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3. Domain / Hosting — §A1 §5

#	Decision	Choice	Signed
3.1	V1 hosting pattern	☐ DestructiveAIGurus.com subpages ☐ Dedicated domain ☐ Other: _____	____

3.2	DAG domain ownership transfer to C-corp	☐ Immediate ☐ At funding ☐ Later _____	____
3.3	Subpage slug pattern	☐ `/katrinas-mystic-guide/` ☐ Other: _____	____

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4. Privacy Policy — §A3

#	Decision	Choice	Signed
4.1	Approve V1-minimal Posture A	☐ Yes ☐ Revise — notes: _____	____
4.2	Operating entity name (fills [OPERATING ENTITY TBD])	_____	____
4.3	Jurisdiction (fills [JURISDICTION TBD])	_____	____
4.4	Contact email (fills [CONTACT EMAIL TBD])	_____	____
4.5	Mailing address (fills [MAILING ADDRESS TBD])	_____	____
4.6	"What we do not collect cannot be lost..." tone (§2.4)	☐ Approve ☐ Soften — notes: _____	____
4.7	Change-notice mechanism (§2.10 in-app notice)	☐ Approve ☐ Revise — notes: _____	____

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5. Pricing + Age Gate — §A2

#	Decision	Choice	Signed
5.1	Approve $19.99 flat paid, one-time, via Google Play	☐ Yes ☐ Revise: _____	____
5.2	Confirm IARC Teen content rating	☐ Yes ☐ Alternative: _____	____
5.3	Confirm 13+ Target Audience declaration	☐ Yes ☐ Alternative: _____	____
5.4	Confirm no dev-side age gate required	☐ Yes ☐ Add gate — rationale: _____	____
5.5	Confirm no state-law age-verification exposure	☐ Yes ☐ Investigate: _____	____
5.6	Confirm no state sales-tax / paid-app registration gap	☐ Yes ☐ Investigate: _____	____
5.7	Accept Google 15% / 30% revenue share	☐ Yes	____
5.8	Accept 48-hour refund window	☐ Yes	____

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6. Terms of Service — §A4

#	Decision	Choice	Signed
6.1	Need a ToS at all?	☐ Yes ☐ No — rely on Play Store ToS	____

6.2	Use operator's stub vs. counsel template	☐ Stub ☐ Counsel template ☐ Hybrid	____
6.3	Arbitration clause + class-action waiver	☐ Include ☐ Omit — rationale: _____	____
6.4	Governing law (matches §1.1)	_____	____
6.5	Hosting URL	☐ `destructiveaigurus.com/katrinas-mystic-guide/terms` ☐ Other: _____	____

7. Intellectual Property — §A1 §9

#	Decision	Choice	Signed
7.1	US Copyright Office registration (Form TX)	☐ File now ☐ File at ship ☐ Defer	____
7.2	Counsel runs TESS trademark search	☐ Yes ☐ Operator runs	____
7.3	Trademark filing basis (IC 009)	☐ Confirm ☐ Revise: _____	____
7.4	Trademark filing timing	☐ Pre-launch ☐ Post-launch	____
7.5	Patent strategy conversation scheduled post-NDA	☐ Yes — date: _____	____
7.6	AI-generated imagery (DreamShaper XL) commercial-use posture	☐ Approve ☐ Investigate further	____
7.7	Third-party attribution screen approved	☐ Approve ☐ Revise	____

8. NDA / Engagement — §3 cover

#	Decision	Choice	Signed
8.1	Mutual NDA or engagement letter with confidentiality?	☐ Mutual NDA ☐ Engagement letter ☐ Both	____
8.2	Use operator's NDA template vs. counsel's	☐ Operator's (B2) ☐ Counsel's ☐ Negotiate	____
8.3	Tier 2 disclosure immediately on execution	☐ Yes ☐ Staged disclosure	____

9. Data Safety (Play Console) — §A5

#	Decision	Choice	Signed
9.1	All-None data collection posture confirmed	☐ Yes	____
9.2	Location "Accessed but not collected" is correct	☐ Yes ☐ Revise	____

9.3	State regulatory exposure (CCPA, VCDPA, CPA, CTDPA, CTPA) confirmed N/A	☐ Yes ☐ Investigate	____

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10. Insurance — §A1 §12

#	Decision	Choice	Signed
10.1	Carry E&O (Errors & Omissions) at ship	☐ Yes ($1M–$2M) ☐ Defer ☐ Self-insure via C-corp	____
10.2	General liability	☐ Include ☐ Skip	____
10.3	Cyber liability	☐ Defer to V2 (no data in V1)	____
10.4	Patent infringement coverage	☐ Defer	____

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11. Counsel Engagement Terms

#	Decision	Choice	Signed
11.1	Engagement scope	☐ Full pre-launch + Play Store ☐ Entity formation only ☐ Other: _____	____
11.2	Fee structure	☐ Hourly ☐ Flat project ☐ Retainer ☐ Other: _____	____
11.3	Estimated budget range	$_____	____
11.4	Next checkpoint meeting	Date: _____	____

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12. Signatures

Operator: Dean Maurice Ellis — _____ — Date: _____

Counsel: _____ — _____ — Date: _____

Back to top | Tier-2 holdback manifest →

B1. Tier-2 Holdback Manifest

What is this? A list of the documents the operator has prepared but is **not** disclosing in Tier 1. These will be delivered on execution of a mutual NDA or an engagement letter with explicit confidentiality provisions (see §3 of the cover).

Why are they gated? The operator's primary concern is patent-novelty preservation. A subset of the items below describe candidate inventions whose novelty case would be weakened (or, in the worst case, published) by disclosure to a non-confidentiality-bound counterparty. A second concern is competitive sensitivity of the commercial strategy.

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1. Tier-2 document inventory

#	Document	Size (approx.)	Why it's in Tier 2
B2-T2-01	**IP register** — operator's internal register of patentable innovations	~230 lines	Contains novelty analysis, claim-angle sketches, and protection roadmaps for the candidate patent portfolio. Public disclosure starts the 12-month US bar clock (35 U.S.C. § 102(b)) and may eliminate foreign rights.
B2-T2-02	**Governance and compliance framework**	~1,150 lines	Comprehensive legal/compliance material. The document is largely operator-drafted policy that mixes lawyer-ready language with specific architectural, data-handling, and pipeline details that inform several patent claims.
B2-T2-03	**Commercialization strategy**	~1,900 lines	Tier architecture (V1 flat paid → V2 tiered), market analysis, financial projections, competitor positioning. Competitively sensitive; no explicit patent concerns but operator-preferred to gate.
B2-T2-04	**Design review**	~1,860 lines	Architectural decisions with algorithm-level specificity. Overlaps with the IP register and contains context that supports several novelty claims.
B2-T2-05	**Future-state Privacy Policy**	~180 lines	Describes a cross-project data architecture (hashed-observation collection model tied to a sibling project's threat-correlation system). The architecture itself is a candidate for IP protection and should not be disclosed pre-NDA.

---

2. Delivery plan

On counsel execution of the NDA or the engagement letter with confidentiality:

1. Operator delivers a second PDF — the Tier-2 packet — identical in format to this one (cover, ToC, hyperlinks, bookmarks), containing the five items above.
2. Operator delivers the underlying markdown sources to counsel's secure file-share or email on

request.

3. Scheduling — operator requests a follow-up working meeting within 2 weeks to walk counsel through the IP register specifically and agree on the provisional-patent filing priority.

---

3. Tier-2 packet readiness

As of the date on the Tier 1 cover, the Tier 2 packet is assembled and ready. It has been generated in the same session as this Tier 1 packet and is sitting on the operator's local filesystem, unreleased. It can be emailed or hand-delivered as soon as the NDA is signed.

---

4. A note to counsel

The operator is aware that ABA Model Rule 1.18 extends a confidentiality duty to prospective-client disclosures, and that in many jurisdictions this duty would cover even an initial consultation call. The operator's preference for an **express written** confidentiality agreement reflects three concerns:

1. **Patent-specific stakes.** Unlike most confidentiality concerns, patent novelty is a one-shot resource. A disclosure that is later adjudged to be "public" cannot be rolled back. The cost of an extra signature is low; the cost of misjudging Rule 1.18's scope is catastrophic.
2. **Scope clarity.** The operator is disclosing material that is **not** strictly "legal advice" territory — it includes commercial strategy and technical architecture. An express NDA makes clear the counterparty owes confidentiality across all of it, not just the legal-consultation subset.
3. **Documentation.** If an investor or acquirer later asks about IP hygiene, an executed NDA trail is cleaner than an implied ethics-rule obligation.

An engagement letter with explicit confidentiality provisions would accomplish all three goals and is the operator's preferred path once it is clear counsel is being engaged. A standalone mutual NDA (see §B2) is the fallback for the initial consultation.

Back to top | Mutual NDA template →

B2. Mutual Non-Disclosure Agreement (Draft Template)

> ***Very important disclaimer.*** *This is an* ***operator-drafted starting template****, not a counsel-approved document. The operator is not an attorney and this document has not been reviewed by one. Counsel is welcome — and encouraged — to substitute their own standard mutual-NDA template. This draft is provided solely to unblock the Monday meeting if counsel does not have a template immediately available.* ***It should not be signed without counsel review.***

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement ("Agreement") is entered into on **[EFFECTIVE DATE]** between:

- **Dean Maurice Ellis**, an individual residing in [Massachusetts], acting in his personal capacity and on behalf of a to-be-formed corporation which shall be a successor-in-interest to the rights and obligations hereunder upon its formation ("**Party A**"); and
- **[COUNSEL NAME / LAW FIRM NAME]** , with an address at [COUNSEL ADDRESS] ("**Party B**").

Each of Party A and Party B is a "**Party**," and together the "**Parties**."

1. Purpose

The Parties wish to explore a potential engagement for legal services in connection with Party A's mobile application *Katrina's Mystic Visitors Guide* and its attendant incorporation, intellectual property, and commercial-release matters (the "**Purpose**"). In connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information.

2. Confidential Information

"**Confidential Information**" means any information disclosed by one Party (the "**Disclosing Party**") to the other (the "**Receiving Party**"), whether orally, visually, in writing, or by any other means, that is:

- marked or identified as "confidential," "proprietary," or similar at the time of disclosure; or
- reasonably understood, under the circumstances, to be confidential or proprietary.

Confidential Information includes, without limitation: (a) technical information, inventions, algorithms, source code, architecture, and know-how; (b) product plans, feature roadmaps, and release schedules; (c) commercial information, including pricing, tier strategy, market analysis, and financial projections; (d) intellectual property inventories, patent novelty analyses, and claim sketches; (e) customer, supplier, and vendor information; and (f) any compilation, analysis, or derivative work that includes any of the foregoing.

3. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate by written records:

- was already in its rightful possession, without confidentiality obligation, before disclosure by the Disclosing Party;
- is or becomes publicly known through no act or omission of the Receiving Party;
- is rightfully received from a third party without confidentiality obligation; or
- is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

4. Obligations

The Receiving Party shall:

- use the Confidential Information solely for the Purpose and for no other purpose;
- protect the Confidential Information with the same degree of care it uses to protect its own confidential information of like importance, and no less than a reasonable degree of care;
- not disclose the Confidential Information to any third party except (i) its employees, contractors, or professional advisors who have a need to know for the Purpose and who are bound by written confidentiality obligations at least as protective as those in this Agreement, or (ii) as required by §6 (Compelled Disclosure);
- not copy, modify, or reverse-engineer any Confidential Information except as reasonably necessary for the Purpose; and
- not use any Confidential Information to develop a product or service that competes with that of the Disclosing Party.

5. Patent-Novelty Protections

The Parties acknowledge that certain Confidential Information disclosed by Party A may include material that is the subject of pending or contemplated patent applications. The Receiving Party agrees that it will not:

- publish, file, or cause to be filed any patent application that claims or incorporates any Confidential Information of the Disclosing Party;
- use any Confidential Information in a manner that would constitute "public disclosure" or "public use" as those terms are understood under 35 U.S.C. § 102; or
- disclose or reference any Confidential Information in any publication, conference presentation, or other public venue.

Nothing in this section grants the Disclosing Party a right to bar the Receiving Party from continuing its own, independent line of development that does not incorporate Confidential Information.

6. Compelled Disclosure

If the Receiving Party is required by law, subpoena, court order, or regulatory demand to disclose any Confidential Information, it shall (to the extent legally permissible) promptly notify the Disclosing Party so the Disclosing Party may seek a protective order or other appropriate remedy, and the Receiving Party shall cooperate with any such effort at the Disclosing Party's expense.

7. No License

No license under any patent, copyright, trademark, or other intellectual property right is granted or implied by this Agreement or by any disclosure hereunder. Each Party retains all right, title, and interest in and to its own Confidential Information.

8. Return or Destruction

Upon written request of the Disclosing Party, the Receiving Party shall (at its election) promptly return or destroy all tangible materials containing Confidential Information and, on request, certify such return or destruction in writing, except for one archival copy retained by counsel for record-keeping purposes, which remains subject to this Agreement.

9. Term and Survival

This Agreement commences on the Effective Date and continues for **five (5) years** thereafter, unless earlier terminated by mutual written agreement. The confidentiality obligations in §4 and §5, and the patent-novelty protections in §5, shall survive termination of this Agreement for so long as the applicable Confidential Information retains its confidential character. Notwithstanding the foregoing, obligations in respect of trade secrets shall survive for so long as the information retains trade-secret status under applicable law.

10. No Obligation

This Agreement does not obligate either Party to (a) enter into any further business or professional relationship, (b) disclose any particular Confidential Information, or (c) refrain from negotiating or entering into agreements with third parties for similar purposes.

11. Remedies

The Parties agree that monetary damages may be inadequate for a breach of this Agreement and that the Disclosing Party shall be entitled, in addition to all other remedies, to seek equitable relief, including injunction and specific performance, without the need to post a bond.

12. Attorney-Client Privilege (Party B as Law Firm)

The Parties acknowledge that Party B is being consulted in the capacity of prospective legal counsel. Nothing in this Agreement shall limit or waive the attorney-client privilege, work-product doctrine, or any ethical obligation of confidentiality that Party B owes to Party A under applicable rules of professional conduct (including, without limitation, ABA Model Rule 1.6 and Rule 1.18). To the extent any conflict exists between this Agreement and such professional obligations, the obligation providing greater protection to Party A's Confidential Information shall govern.

13. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **[STATE TBD]**, without regard to its conflict-of-laws principles. Any disputes arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in **[COUNTY AND STATE TBD]**, and each Party consents to personal jurisdiction there.

14. Entire Agreement; Amendments

This Agreement is the entire agreement between the Parties with respect to the subject matter and supersedes any prior oral or written understanding. It may be amended only by a writing signed by both Parties.

15. Counterparts and Electronic Signatures

This Agreement may be executed in counterparts, each of which is an original, and may be signed electronically. Electronic or scanned signatures shall be deemed originals.

16. Successors and Assigns

This Agreement binds and benefits the Parties and their respective successors, assigns, and legal representatives. Party A's to-be-formed corporation (see preamble) shall be deemed a successor-in-interest and shall assume the rights and obligations of Party A hereunder upon its formation, without the need for further writing.

Signatures

Party A — Dean Maurice Ellis (individual, on own behalf and for to-be-formed corporation)

Signature: _____

Printed name: _____

Date: _____

Party B — [COUNSEL NAME / LAW FIRM NAME]

Signature: _____

Printed name: _____

Title: _____

Date: _____

Operator drafting notes

1. **Term length.** Five years is the operator's default; counsel may prefer shorter (3 years) or specific-to-trade-secret perpetual. Counsel's call.
2. **Patent-novelty clause (§5) is deliberately explicit.** Standard mutual NDAs rarely spell out the 35 U.S.C. § 102 implications; this draft does because the operator's primary concern is patent preservation. Counsel may want to soften or strengthen.
3. **Successors clause (§16) pre-binds the to-be-formed C-corp.** This avoids a re-sign step after incorporation. Counsel should confirm enforceability under the operator's eventual state of incorporation.
4. **Governing law and forum (§13) is left [TBD].** Counsel will decide based on the operating-entity state.
5. **ABA Rule 1.18 cross-reference (§12) is explicit.** This is unusual in an NDA but the operator wants it clear that the NDA layers on top of, and does not replace, counsel's ethical confidentiality duties.
6. **No residual-knowledge clause.** Some NDAs include a "residuals" carve-out permitting use of retained mental impressions. The operator's draft omits it because it would weaken patent-novelty protections.
7. **Counsel's preferred template is welcome as a substitute.** The operator's only non-negotiables are: (a) the patent-novelty protections of §5 (or equivalent language), (b) the successors clause of §16 (so the C-corp inherits the protection), (c) an express term of at least three years.

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